

**BEFORE THE
FEDERAL MARITIME COMMISSION**

DOCKET NO. 25-24

SOUTHERN INTERNATIONAL CO., LTD.

Complainant,

v.

DAYNAMEZ GROUP OF COMPANIES LLC

Respondent.

**COMPLAINANT'S OPPOSITION TO RESPONDENT'S MOTION TO DISMISS
THE AMENDED FORMAL COMPLAINT**

Comes Now, the Complainant, Southern International Co., Ltd. ("SIC"), by and through its undersigned representative, and hereby files this Opposition to the Motion to Dismiss the Amended Formal Complaint ("Motion") filed by Respondent, Daynamez Group of Companies LLC ("Daynamez"), on December 29, 2025.

For the reasons set forth below, the Complainant respectfully requests that the Commission DENY the Respondent's Motion in its entirety and order the Respondent to file an Answer to the Amended Formal Complaint.

I. INTRODUCTION AND PROCEDURAL BACKGROUND

On December 1, 2025, Administrative Law Judge Mary Apostolakos Hervey issued an Order Deferring a ruling on Respondent's initial Motion to Dismiss and granting Complainant leave to amend its Complaint to cure specific deficiencies regarding the detailing of allegations.

In strict compliance with the Commission's Order, SIC filed its Amended Formal



Complaint on December 10, 2025. The Amended Formal Complaint specifically identifies the shipments, container numbers, and the precise nature of the Respondent's violative conduct.

On December 29, 2025, Respondent filed the instant Motion to Dismiss. The Motion largely recites the same arguments as Respondent's previous filings, erroneously claiming a lack of jurisdiction based on Respondent's self-proclaimed status and a contractual forum selection clause.

Respondent's Motion fails to appreciate the statutory nature of the claims. This is not a mere contractual dispute; it is a claim for violations of the Shipping Act of 1984, specifically 46 U.S.C. § 41102(c), arising from Respondent's unreasonable practice.

II. STANDARD OF REVIEW

The Commission's standard for evaluating a Motion to Dismiss is well-settled and imposes a heavy burden on the moving party. In considering such a motion, the Commission looks to the Federal Rules of Civil Procedure ("FRCP") for guidance and applies standards consistent with FRCP 12(b)(6). *See* 46 C.F.R. § 502.12.

1. The Commission must accept as true all well-pleaded material allegations in the Complaint and must construe them in the light most favorable to the Complainant. *Scheuer v. Rhodes*, 416 U.S. 232, 236 (1974); *see also Mitsui O.S.K. Lines Ltd. v. Global Link Logistics, Inc.*, FMC Docket No. 09-01 (Order Denying Motion to Dismiss). At this preliminary stage, the Commission does not weigh the evidence or evaluate the credibility of the parties. Instead, the sole inquiry is whether the facts alleged, if proven, would constitute a violation of the Shipping Act.
2. Dismissal is a drastic remedy restricted to cases where the complaint fails to state a claim to relief that is plausible on its face. *Bell Atl. Corp. v. Twombly*, 550 U.S. 544, 570 (2007); *Ashcroft v. Iqbal*, 556 U.S. 662, 678 (2009). Under this standard, a claim has facial plausibility when the complainant pleads factual content that allows the Commission to draw the reasonable inference that the respondent is liable for the misconduct alleged. *Iqbal*, 556 U.S. at 678. Here, SIC's Amended Formal Complaint moves well beyond "labels and conclusions" or a "formulaic recitation of the elements." By specifically identifying 558

containers, exact freight amounts collected by Respondent, and the precise nature of the cargo hold, SIC has provided the necessary “factual enhancement” to render the allegation of Daynamez’s status as a common carrier not just possible, but highly plausible. Accordingly, the factual predicate required to survive a motion to dismiss is undeniably present.

3. Where, as here, a Respondent challenges the Commission’s subject matter jurisdiction based on factual assertions (e.g., claiming it does not act as an NVOCC), the Commission must be particularly cautious. Courts and the Commission typically refuse to dismiss a complaint for lack of jurisdiction where the jurisdictional issues are intertwined with the merits of the case. Because the determination of Respondent’s status as a “common carrier” or “ocean transportation intermediary” is fact-intensive and central to the violation itself, the Commission should defer such findings until a full record is developed. See *Landstar Express Am., Inc. v. Fed. Mar. Comm’n*, 569 F.3d 493 (D.C. Cir. 2009) (jurisdiction under the Shipping Act is functional and fact-specific).

Conclusion on Standard: Under this rigorous standard, Respondent’s Motion fails. Respondent asks the Commission to reject SIC’s factual allegations and accept its own version of the facts (i.e., that it is merely an agent) before any discovery has occurred. This is procedurally improper. As demonstrated below, SIC has pleaded sufficient facts, including specific evidence of Respondent “holding out” as an NVOCC and exercising control over cargo, to establish prima facie FMC jurisdiction and a viable cause of action.

III. ARGUMENT

1. PROCEDURAL AND PLEADING SUFFICIENCY

(Responding to Respondent’s Paragraphs 1, 2, 3, 6, 17, and 25 of the Motion)

Respondent dedicates a significant portion of its Motion to attacking the form and sufficiency of the Amended Formal Complaint, characterizing it as “inadequate,” “rambling,” and containing “false conclusionary allegations.” Respondent further attempts to misinterpret the Commission’s prior Order to suggest a ruling on the merits where none exists. These arguments are procedurally improper and legally unsupported by the record.

1.1. Complainant has strictly complied with the Commission's Order and FRCP 10(b)

In Paragraph 2 of its Motion, Respondent erroneously asserts that the Amended Formal Complaint fails to follow a coherent format and falsely claims the Presiding Officer "did not find the allegations sufficient on the merits." This assertion is inconsistent with the judicial record. In the Order served December 1, 2025, Administrative Law Judge Hervey explicitly stated that a ruling on the Motion to Dismiss was "DEFERRED", not granted on the merits. The Court granted SIC leave to "cure the deficiencies specified in this order" in accordance with 46 C.F.R. § 502.62(a) and FED. R. CIV. P. 10(b). SIC has strictly complied with these directives. A review of the Amended Formal Complaint confirms that:

- (a) The claims are set forth in sequentially numbered paragraphs (1 through 40);
- (b) Each paragraph is limited as far as practicable to a single set of circumstances; and
- (c) The specific deficiencies noted by the Court (lack of detail) have been cured by the inclusion of precise shipment data. Therefore, Respondent's argument is factually incorrect and ignores the plain text of the amended pleading.

1.2. The Amended Formal Complaint pleads specific, verifiable facts

The Amended Formal Complaint pleads specific, verifiable facts. Respondent's characterization of the Complaint as "rambling" or lacking specific violations is contradicted by the document itself. To survive a motion to dismiss, a complaint need only contain "a short and plain statement of the claim showing that the pleader is entitled to relief." FED. R. CIV. P. 8(a)(2). SIC has exceeded this standard by providing, in Exhibit B (referenced in Paragraph 23), a granular list of cargo that was not released to consignees due to Respondent's failure to facilitate delivery, including: (i) Specific House Bill of Lading numbers (e.g., VNNYC2410042, VNJAX2410183); (ii) Specific Booking numbers (e.g., E490384917, E490384978, ZIMUHCM80456633); (iii) Specific dates of departure and arrival (e.g., ETA 28/11/2024 - ETD 11/10/2024). These are not

“bold faced allegations”; they are verifiable facts that establish the “who, what, when, and where” of Respondent’s unreasonable practice under 46 U.S.C. §41102(c).

1.3. Judicial notice of the Agency Agreement

(Rebutting Paragraph 6)

Respondent argues in Paragraph 6 that the “Agency Agreement” is missing from the Amended Formal Complaint and implies this is a fatal defect. This argument is unfounded for two reasons: First, the Agreement is already in the Record. The Agency Agreement (No. SIC/DNM-011224) was officially filed with the Commission on August 26, 2025, as an attachment to the Original Complaint. The Commission may properly take judicial notice of documents already filed on its own docket in the same proceeding. Requiring Complainant to re-attach the same voluminous document in every amendment is a procedural redundancy that does not affect the substantive sufficiency of the pleadings. Second, this is a Statutory Claim. SIC’s cause of action arises from the Shipping Act, not solely from the contract. The gravamen of the complaint is Respondent’s conduct, which is an independent statutory violation. Therefore, the physical attachment of the contract to the Amended Formal Complaint is not a prerequisite for establishing subject matter jurisdiction over the statutory claim.

2. FUNCTIONAL AND GEOGRAPHIC JURISDICTION ESTABLISH FMC AUTHORITY

(Responding to Respondent’s Paragraphs 4, 5, 7, 10, 12, 13, 14, 16, and 21 of the Motion)

Respondent attempts to evade the Commission’s jurisdiction by arguing (1) that it is not a licensed NVOCC and therefore not subject to the Act, and (2) that the Commission lacks jurisdiction over inbound shipments. Both arguments are contrary to law and fact.

2.1. Jurisdiction is determined by function and “Holding Out”

(Rebutting Paragraphs 4, 5, 7, 10, 12, and 21 of the Motion)

Respondent argues that because it is not a licensed NVOCC and did not physically issue the bills of lading, it falls outside the Commission’s reach.

However, Respondent's attempt to evade Commission jurisdiction by labeling itself a mere "Sales Agent" is unavailing under well-established Commission precedent.

Jurisdiction is determined by a party's functional conduct, not its self-proclaimed title or lack of licensure. See *Common Carrier Status of NVOCCs*, 21 F.M.C. 545 (1979) (holding that status is determined by the nature of the services held out to the public). By accepting cargo, issuing invoices in its own name, and assuming responsibility for the transportation from Vietnam to the United States, Daynamez acted as a common carrier within the meaning of 46 U.S.C. § 40102(7). The Commission has consistently held that an unlicensed entity acting as an NVOCC is subject to the Shipping Act to the same extent as a licensed one. To hold otherwise would allow any entity to bypass the Act's prohibitions simply by failing to register.

(a) **The "Holding Out" Doctrine and Party Admission:** Under the Shipping Act, a "common carrier" is defined not by its license, but by whether it "holds itself out" to the general public to provide transportation for compensation. 46 U.S.C. § 40102(7).

- Website Admission: Respondent cannot publicly advertise itself as an NVOCC to attract business and then deny that status to evade liability. As evidenced by Exhibit A of the Amended Formal Complaint, Respondent's own official website (*daynamez.com*) explicitly represents its status to the world: "*We are NVOCC*". This constitutes a party admission. A company that holds itself out as an NVOCC is subject to FMC jurisdiction regardless of whether it has complied with the licensing requirements.
- Evidence of "Net/Net" Pricing Structure: The nature of the financial transaction confirms Respondent's status as a Carrier/Principal, not a mere agent. In multiple email communications attached to the Complaint as Exhibit A, Respondent explicitly quoted rates as "Net/Net".

- + In an email dated November 17, 2023, Respondent's CEO Zia Kamali wrote: "*For 1x40ft HCM/HPH will be Maersk and also Evergreen 1650/USD Net/Net*".
- + In an email dated January 6, 2024, Mr. Kamali stated: "*Pls find below our best net/net offer*".
- + In an email dated February 29, 2024, Mr. Kamali emphasized: "*NOTE IN THIS PARTICULAR OFFER THIS IS OUR NET/NET COSTING*".
- Quoting "Net/Net" rates implies that the Respondent is buying space from the ocean carrier and reselling it to Complainant at an all-in rate to profit from the spread, rather than acting as a transparent agent receiving a fixed commission. Furthermore, Exhibit B shows that Respondent collected \$2,415,660.87 in freight payments directly, a volume inconsistent with a mere agency role.

(b) Liability for unreasonable practices extends to agents exercising control: Respondent relies on *Landstar Express America Inc. v. FMC*, 569 F.3d 493 (D.C. Cir. 2009) to argue that agents are immune from the Act. This reliance is misplaced.

- Distinguishing *Landstar*: *Landstar* addressed whether an agent was required to *publish a tariff*. It did not create immunity for agents who engage in unreasonable practices.
- Functional control equals liability: Respondent's liability does not depend on whether it physically controlled the containers or terminals. Rather, Respondent exercised functional control over the delivery process by acting as the sole intermediary that received freight payments from Complainant and was responsible for remitting those funds and coordinating release with the ocean carriers. By failing to transmit payment or otherwise facilitate the release of the relevant transport documents after accepting full freight charges, Respondent knowingly and unreasonably caused the non-release of cargo, resulting in accrued demurrage, detention, and commercial losses to

U.S. consignees. Such conduct constitutes an unreasonable practice relating to the “delivering of property” under Section 41102(c), regardless of whether Respondent physically possessed the cargo.

2.2. The Shipping Act governs inbound shipments

(Rebutting Paragraphs 13, 14, and 16 of the Motion)

Respondent’s argument that the FMC lacks jurisdiction over “inbound” cargo from Vietnam is legally baseless and ignores the plain text of the Shipping Act.

- Statutory definition: 46 U.S.C. § 40102(7)(A) defines common carriage as transportation “between the United States and a foreign country.” The preposition “between” encompasses both export and import trade. It is well-settled that the FMC regulates inbound shipments to protect U.S. consignees and the domestic supply chain from unreasonable practices.
- Locus of violation: The actionable conduct, the failure to effect cargo release and the demand for payment, occurred within the United States at the ports of discharge (e.g., Los Angeles, New York). Respondent is a U.S. company operating on U.S. soil. The suggestion that the Commission cannot regulate the delivery of cargo at a U.S. port simply because the voyage began in Vietnam is without merit.

3. THE EXISTENCE OF A CONTRACTUAL DISPUTE DOES NOT PRECLUDE FMC JURISDICTION OVER STATUTORY VIOLATIONS

(Responding to Respondent’s Paragraphs 11, 18, 19, and 26 of the Motion)

In Paragraphs 11, 19, and 26, Respondent repeatedly attempts to minimize this proceeding as “simply... a dispute between 2 parties who have a dispute over money” or a “civil dispute between two agents” that should be adjudicated elsewhere. This argument fundamentally mischaracterizes the Amended Formal Complaint. SIC is not before this Commission to collect a debt or enforce the terms of the Agency Agreement; SIC is here to seek redress for Respondent’s independent violations of the Shipping Act of 1984.

3.1. Private contracts cannot oust the commission's jurisdiction (statutory supremacy)

(Rebutting Paragraphs 11, 19, and 26 of the Motion)

Respondent explicitly admits in Paragraphs 19 and 26 that "the Court stated that a shipping contract does not supplant the Shipping Act." Yet, Respondent proceeds to ignore this very principle and contradicts its own admission by arguing that the forum selection clause in the Agency Agreement should control. This argument constitutes a fundamental misunderstanding of the Commission's statutory mandate and applicable precedent.

First, while the Supreme Court in *Vimar Seguros y Reaseguros, S.A. v. M/V Sky Reefer*, 515 U.S. 528 (1995), upheld foreign arbitration clauses in private cargo damage disputes, that precedent is inapplicable where, as here, the Complainant alleges substantive violations of the Shipping Act of 1984.

Second, the Commission has **long held** that private contractual arrangements cannot divest it of jurisdiction over statutory violations. See *A.N. Deringer, Inc. v. Marlin Marine Servs., Inc.*, 25 S.R.R. 1273 (ALJ 1990). Reinforcing this principle, the Commission later held in *Interpool, Ltd. v. Hapag-Lloyd AG*, Docket No. 04-10 (FMC 2004), that a forum selection clause cannot be used to waive a shipper's statutory rights under the Shipping Act.

Where a regulated entity's conduct violates a specific provision of the Act, such as the duty to observe reasonable practices under 46 U.S.C. § 41102(c), the Commission has mandatory subject matter jurisdiction. Accordingly, the clause designating Vietnam as the forum is unenforceable as against public policy in the context of this statutory proceeding.

3.2. The claim is for "Unreasonable Practices," not breach of contract

(Rebutting Paragraph 18 of the Motion)

In Paragraph 18, Respondent argues that the allegations are "more in the form of civil allegations" and incorrectly asserts there is "no proof of payment to Daynamez". This defense is factually incorrect and ignores the specific statutory theory of the case.

- The evidence of payment: Respondent's assertion of "no proof" is factually incorrect and ignores the record. Full copies of the bank wire transfer receipts were previously filed with the Commission on August 26, 2025, as attachments to the original Complaint (Dkt. 1). To avoid burdening the record with duplicative voluminous filings, SIC presented a detailed summary schedule in Exhibit B of the Amended Formal Complaint, referencing those specific payments. The Commission may properly take judicial notice of the evidentiary documents already in its possession. The detailed schedule in Exhibit B, combined with the receipts already on the docket, irrefutably establishes the payment of \$2,415,660.87.
- The conduct (blocking delivery through omission): While Respondent did not physically seize or detain the cargo at the port terminals, Respondent accepted full freight payment from Complainant and thereafter failed to remit such payment to the ocean carriers or otherwise take the necessary steps to secure the release of the applicable bills of lading and/or delivery orders. As a direct and foreseeable consequence of Respondent's omissions, the cargo could not be released to the consignees at the ports of discharge in the United States. Under the Shipping Act, an unreasonable practice is not limited to affirmative acts of detention. A party that accepts responsibility for transportation services and payment, yet fails to perform the acts necessary to effect delivery, engages in a practice that effectively blocks delivery of property and squarely falls within the scope of 46 U.S.C. § 41102(c).

3.3. The conduct threatens the supply chain (public interest)

The harm caused by Respondent's unreasonable practices extends well beyond a private accounting dispute. Because Respondent failed to complete the payment and coordination steps necessary for cargo release after receiving full freight charges, third-party consignees in the United States were unable to obtain their cargo at the ports of discharge. As a result, those consignees sought recovery from Complainant for freight charges, storage costs, and related damages. The Shipping Act exists precisely to prevent such breakdowns in the international supply chain. See Interpretive Rule on Demurrage and Detention Under the Shipping Act, 46 C.F.R. § 545.5 (emphasizing that the purpose of the

Act is to promote the flow of commerce). A practice whereby an intermediary accepts freight payments yet fails to take the actions required to effect delivery undermines confidence in U.S. maritime commerce and constitutes the type of unreasonable practice that Congress empowered the Commission to remedy.

4. RESPONDENT'S RELIANCE ON INAPPLICABLE CASE LAW AND STATUTES IS MISPLACED

(Responding to Respondent's Paragraphs 8, 9, 15, 22, 23, and 24 of the Motion)

Respondent cites a patchwork of cases and statutory provisions in an attempt to shield its conduct from Commission oversight. However, the legal authorities cited by Respondent are legally inapposite and factually distinguishable from the specific statutory violations alleged in the Amended Formal Complaint.

4.1. The cited case law does not immunize agents from liability for unreasonable practices

(Rebutting Paragraphs 8, 9, and 15 of the Motion)

- (a) *Express America Inc. v. FMC* is inapplicable: In Paragraph 8, Respondent cites *Landstar Express America Inc. v. FMC*, 569 F.3d 493 (D.C. Cir. 2009), to argue that agents of NVOCCs are not subject to the Shipping Act. Respondent's reliance on *Landstar* extends beyond the narrow holding of that decision. In that case, the D.C. Circuit addressed a narrow issue: whether an entity acting solely as an agent for NVOCCs was required to publish its own tariff. The court did not hold that an agent is immune from liability when it engages in unreasonable practices. The Commission retains jurisdiction over any person, including agents, whose conduct directly interferes with the "receiving, handling, ... or delivering of property" in violation of 46 U.S.C. § 41102(c). Respondent is not being sued for a technical failure to file a tariff; it is being sued for its own independent misconduct in failing to facilitate the delivery of cargo and failing to issue, or otherwise facilitate the issuance of, Delivery Orders despite having received payment. *Landstar* offers no shield for such unreasonable practices.

- (b) *A Customs Brokerage, Inc. v. Cargocare* is irrelevant: In Paragraph 9, Respondent relies on *A Customs Brokerage, Inc. v. Cargocare Logistics USA, Inc.* to argue that the Commission lacks jurisdiction because “customs duties were not included”. This comparison is inapposite. The *Cargocare* decision turned on the specific administrative nature of “customs brokerage” services (i.e., filing entries and paying duties). In stark contrast, the present case involves the physical control and release of cargo (issuance of Delivery Orders) at the port terminal. The handling and delivery of containerized cargo is a core maritime function subject to the Shipping Act, distinct from the clerical processing of customs entries.
- (c) *AEL Asia Express* involves insurance, not regulatory jurisdiction: In Paragraph 15, Respondent cites *AEL Asia Express (H.K.) Ltd. v. Am. Bankers Ins. Co.* regarding the definition of an NVOCC. Respondent’s reliance on this case is misplaced. *AEL Asia* was a Fourth Circuit decision interpreting the scope of an insurance policy, not a Commission decision defining the scope of regulatory jurisdiction. As previously established in Section 2, the Commission applies a functional test to determine status. Whether or not Respondent meets the technical definition used in a private insurance dispute, it undeniably performed the functions of an Ocean Transportation Intermediary (OTI) by controlling the movement and release of goods in U.S. commerce.

4.2. 41102(c) is the applicable statute

(Rebutting Paragraphs 22, 23, and 24 of the Motion)

- (a) Section 41102(c) governs respondent’s conduct: In Paragraph 22, Respondent falsely claims that the alleged violations under 46 U.S.C. § 41102(c) are “not relevant to this situation”. On the contrary, Section 41102(c) is the relevant “catch-all” provision of the Shipping Act. It mandates that regulated entities (and those acting as such) establish and observe just and reasonable regulations and practices regarding the “receiving, handling, storing, or delivering of property.” Respondent’s refusal to issue Delivery Orders is a practice directly connected to the “delivering of property.” SIC asserts a standalone violation of Section

41102(c); it need not prove violations of Section 41102(a) or (b) to sustain this claim.

- (b) Reliance on the filing of the Agreement is misplaced: In Paragraph 23, Respondent argues about the filing of the Agency Agreement under Section 41102(b). This argument is irrelevant to the substantive issues raised in the Amended Formal Complaint. SIC's claims focus on the unreasonable practice of cargo detention and the disruption of the supply chain under Section 41102(c), not a technical failure to file agreements. The Commission has jurisdiction over the Respondent's conduct (detention), regardless of the filing status of the underlying contract.

5. MISCELLANEOUS ISSUES

(Responding to Respondent's Paragraph 20 of the Motion)

In Paragraph 20, Respondent characterizes the reference to its "contacts in Rotterdam" in the Amended Formal Complaint as an "incomprehensible argument" and questions its relevance to shipments from Vietnam to the United States. This objection is meritless and ignores the specific causes of action pleaded by Complainant.

- Relevance to Section 41102(a) claim: The reference to Rotterdam is not merely contextual; it is material to Complainant's claim for False Representations under 46 U.S.C. § 41102(a). As specifically alleged in Paragraphs 10 and 34 of the Amended Formal Complaint, Respondent induced SIC to enter into the business relationship by falsely representing that it had "major partners in Rotterdam who can purchase bookings at cheap prices."
- Establishment of inducement: SIC alleges that these representations regarding Respondent's global network and pricing capabilities were false and were used as an unjust or unfair device to obtain transportation services. Whether Respondent actually possesses such contacts in Rotterdam is a question of fact that goes to the credibility of Respondent's commercial representations.
- Improper ground for dismissal: Respondent's confusion or disagreement regarding a specific factual allegation does not render the Complaint legally deficient. At the motion to dismiss stage, the Commission must accept Complainant's allegation, that

Respondent made these false representations about Rotterdam, as true. Respondent's attempt to argue the merits of this specific detail is premature and inappropriate for a motion to dismiss.

IV. CONCLUSION AND PRAYER FOR RELIEF

Respondent Daynamez Group of Companies LLC has failed to meet its heavy burden to demonstrate that the Amended Formal Complaint should be dismissed. Its Motion relies on factual misrepresentations and legal theories that have been repeatedly rejected by this Commission.

1. Complainant has strictly complied with the Presiding Officer's December 1, 2025 Order. The Amended Formal Complaint cures all prior deficiencies by providing a granular list of specific Bill of Lading numbers, Container numbers, and dates of detention, thereby satisfying the pleading standards of FRCP 8(a) and 46 C.F.R. § 502.62.
2. The Commission has clear subject matter jurisdiction because Respondent acted as a functional Ocean Transportation Intermediary ("OTI") and held itself out as an NVOCC. Its refusal to release cargo at U.S. ports constitutes a specific "unreasonable practice" under 46 U.S.C. § 41102(c), a statutory violation that is independent of any contractual status.
3. A private contractual dispute or a forum selection clause in an Agency Agreement cannot strip the Commission of its mandatory authority to adjudicate statutory violations that disrupt the U.S. supply chain and harm the shipping public.

WHEREFORE, Complainant Southern International Co., Ltd. respectfully requests that the Presiding Officer:

1. DENY Respondent's Motion to Dismiss the Amended Formal Complaint in its entirety;
2. ORDER Respondent to file an Answer to the Amended Formal Complaint within the time prescribed by the Commission's Rules of Practice and Procedure; and
3. Grant such other and further relief as may be just and proper.

Respectfully submitted,



Nguyen Tien Phuong

Director / Pro Se Complainant

Southern International Co., Ltd.

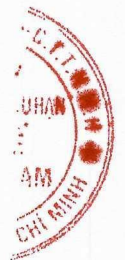
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Dated: January 9th, 2026



CERTIFICATE OF SERVICE

I certify that on the 9th day of January, 2026, a true and correct copy of the foregoing **Complainant's Opposition to Respondent's Motion to Dismiss** was served by electronic mail upon:

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Respectfully submitted,



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Dated: January 9th, 2026